

SENATE BILL No. 271

DIGEST OF INTRODUCED BILL

Citations Affected: IC 25-37.5-1; IC 34-24.

Synopsis: Sale of telecommunications equipment. Specifies documentation requirements for the: (1) sale of telecommunications network equipment; and (2) purchase of telecommunications network equipment by a valuable metal dealer. Provides that a: (1) person who sells or attempts to sell telecommunications network equipment; or (2) valuable metal dealer who purchases or attempts to purchase telecommunications network equipment; in violation of these requirements commits a Class A infraction. Provides that a person who: (1) knowingly or intentionally fails to comply with Indiana law governing valuable metal dealers; and (2) sells stolen telecommunications network equipment; commits a Level 6 felony. Allows seizure and civil forfeiture of a vehicle that is used in the commission of a theft of valuable metal under specified circumstances. Provides that a person who suffers a pecuniary loss as a result of a violation of Indiana law governing valuable metal dealers may bring a civil action for specified damages against the person who caused the loss.

Effective: July 1, 2026.

Koch

January 8, 2026, read first time and referred to Committee on Corrections and Criminal Law.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 271

A BILL FOR AN ACT to amend the Indiana Code concerning professions and occupations.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 25-37.5-1-0.7 IS ADDED TO THE INDIANA
2 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
3 [EFFECTIVE JULY 1, 2026]: **Sec. 0.7. (a) As used in this section,**
4 **"burned wire" means coated metal wire from which the protective**
5 **coating has been removed by smelting, burning, or melting.**

6 **(b) As used in this chapter, "telecommunications network**
7 **equipment" means:**

8 **(1) wire used in wireline communications service, including:**

9 **(A) fiber;**

10 **(B) sheathed copper cable; and**

11 **(C) twisted-pair wire without sheathing;**

12 **including burned wire; and**

13 **(2) any component of equipment or infrastructure used to**
14 **provide telecommunications service, including:**

15 **(A) tower components;**

16 **(B) antennae;**

17 **(C) bus bars; and**



1 **(D) copper ground support structures;**
 2 **and all associated aerial or ground based cable lines or equipment**
 3 **used as part of a telecommunications or broadband network.**

4 SECTION 2. IC 25-37.5-1-7, AS AMENDED BY P.L.70-2021,
 5 SECTION 2, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 6 JULY 1, 2026]: Sec. 7. (a) A valuable metal dealer who fails to comply
 7 with this chapter commits a Class A infraction.

8 (b) A valuable metal dealer who:

9 (1) knowingly or intentionally fails to comply with this chapter;
 10 and

11 (2) purchases stolen valuable metal;
 12 commits concealing a valuable metal purchase, a Level 6 felony.

13 (c) A:

14 (1) person who sells or attempts to sell telecommunications
 15 network equipment; or

16 (2) valuable metal dealer who purchases or attempts to
 17 purchase telecommunications network equipment;

18 in violation of this chapter commits a Class A infraction.

19 (d) A person who:

20 (1) knowingly or intentionally fails to comply with this
 21 chapter; and

22 (2) sells stolen telecommunications network equipment;
 23 commits concealment of the sale of telecommunications network
 24 equipment, a Level 6 felony.

25 SECTION 3. IC 25-37.5-1-11 IS ADDED TO THE INDIANA
 26 CODE AS A NEW SECTION TO READ AS FOLLOWS
 27 [EFFECTIVE JULY 1, 2026]: Sec. 11. (a) A person may not sell or
 28 attempt to sell, and a valuable metal dealer may not purchase or
 29 attempt to purchase, telecommunications network equipment in
 30 any amount, unless the seller provides the valuable metal dealer
 31 with:

32 (1) a signed certificate of ownership stating that the seller is
 33 the owner of the telecommunications network equipment and
 34 is entitled to sell the telecommunications network equipment;

35 (2) a signed certificate from the owner of the
 36 telecommunications network equipment stating that:

37 (A) the signer is the owner of the telecommunications
 38 network equipment; and

39 (B) the seller is authorized to sell the telecommunications
 40 network equipment on behalf of the owner; or

41 (3) an affidavit executed by a law enforcement officer
 42 attesting to the officer's reasonable belief that the seller came



1 **into possession of the telecommunications network equipment**
 2 **legally.**

3 **(b) A valuable metal dealer that purchases telecommunications**
 4 **network equipment must maintain a copy of the certificate or**
 5 **affidavit provided by the seller of the telecommunications network**
 6 **equipment under subsection (a)(1), (a)(2), or (a)(3).**

7 SECTION 4. IC 34-24-1-1, AS AMENDED BY P.L.186-2025,
 8 SECTION 184, IS AMENDED TO READ AS FOLLOWS
 9 [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) The following may be seized:

10 (1) All vehicles (as defined by IC 35-31.5-2-346), if they are used
 11 or are intended for use by the person or persons in possession of
 12 them to transport or in any manner to facilitate the transportation
 13 of the following:

14 (A) A controlled substance for the purpose of committing,
 15 attempting to commit, or conspiring to commit any of the
 16 following:

17 (i) Dealing in or manufacturing cocaine or a narcotic drug
 18 (IC 35-48-4-1).

19 (ii) Dealing in methamphetamine (IC 35-48-4-1.1).

20 (iii) Manufacturing methamphetamine (IC 35-48-4-1.2).

21 (iv) Dealing in a schedule I, II, or III controlled substance
 22 (IC 35-48-4-2).

23 (v) Dealing in a schedule IV controlled substance (IC
 24 35-48-4-3).

25 (vi) Dealing in a schedule V controlled substance (IC
 26 35-48-4-4).

27 (vii) Dealing in a counterfeit substance (IC 35-48-4-5).

28 (viii) Possession of cocaine or a narcotic drug (IC
 29 35-48-4-6).

30 (ix) Possession of methamphetamine (IC 35-48-4-6.1).

31 (x) Dealing in paraphernalia (IC 35-48-4-8.5).

32 (xi) Dealing in marijuana, hash oil, hashish, or salvia (IC
 33 35-48-4-10).

34 (xii) An offense under IC 35-48-4 involving a synthetic drug
 35 (as defined in IC 35-31.5-2-321), a synthetic drug lookalike
 36 substance (as defined in IC 35-31.5-2-321.5 (before its
 37 repeal on July 1, 2019)) under IC 35-48-4-10.5 (before its
 38 repeal on July 1, 2019), a controlled substance analog (as
 39 defined in IC 35-48-1.1-8), or a substance represented to be
 40 a controlled substance (as described in IC 35-48-4-4.6).

41 (B) Any stolen (IC 35-43-4-2 or IC 35-43-4-2.2) or converted
 42 property (IC 35-43-4-3) if the retail or repurchase value of that



property is one hundred dollars (\$100) or more.

(C) Any hazardous waste in violation of IC 13-30-10-1.5.

(D) A bomb (as defined in IC 35-31.5-2-31) or weapon of mass destruction (as defined in IC 35-31.5-2-354) used to commit, used in an attempt to commit, or used in a conspiracy to commit a felony terrorist offense (as defined in IC 35-50-2-18) or an offense under IC 35-47 as part of or in furtherance of an act of terrorism (as defined by IC 35-31.5-2-329).

(2) All money, negotiable instruments, securities, weapons, communications devices, or any property used to commit, used in an attempt to commit, or used in a conspiracy to commit a felony terrorist offense (as defined in IC 35-50-2-18) or an offense under IC 35-47 as part of or in furtherance of an act of terrorism or commonly used as consideration for a violation of IC 35-48-4 (other than items subject to forfeiture under IC 16-42-20-5 or IC 16-6-8.5-5.1, before its repeal):

(A) furnished or intended to be furnished by any person in exchange for an act that is in violation of a criminal statute;

(B) used to facilitate any violation of a criminal statute; or

(C) traceable as proceeds of the violation of a criminal statute.

(3) Any portion of real or personal property purchased with money that is traceable as a proceed of a violation of a criminal statute.

(4) A vehicle that is used by a person to:

(A) commit, attempt to commit, or conspire to commit;

(B) facilitate the commission of; or

(C) escape from the commission of;

murder (IC 35-42-1-1), dealing in a controlled substance resulting in death (IC 35-42-1-1.5), kidnapping (IC 35-42-3-2), criminal confinement (IC 35-42-3-3), rape (IC 35-42-4-1), child molesting (IC 35-42-4-3), or child exploitation (IC 35-42-4-4), ~~or a theft to which IC 35-43-4-2(a)(2)(B) applies,~~ or an offense under IC 35-47 as part of or in furtherance of an act of terrorism.

(5) Real property owned by a person who uses it to commit any of the following as a Level 1, Level 2, Level 3, Level 4, or Level 5 felony:

(A) Dealing in or manufacturing cocaine or a narcotic drug (IC 35-48-4-1).

(B) Dealing in methamphetamine (IC 35-48-4-1.1).

(C) Manufacturing methamphetamine (IC 35-48-4-1.2).

(D) Dealing in a schedule I, II, or III controlled substance (IC



- 1 35-48-4-2).
- 2 (E) Dealing in a schedule IV controlled substance (IC
- 3 35-48-4-3).
- 4 (F) Dealing in marijuana, hash oil, hashish, or salvia (IC
- 5 35-48-4-10).
- 6 (G) Dealing in a synthetic drug (as defined in
- 7 IC 35-31.5-2-321) or synthetic drug lookalike substance (as
- 8 defined in IC 35-31.5-2-321.5 (before its repeal on July 1,
- 9 2019)) under IC 35-48-4-10.5 (before its repeal on July 1,
- 10 2019).
- 11 (H) Dealing in a controlled substance resulting in death (IC
- 12 35-42-1-1.5).
- 13 (6) Equipment and recordings used by a person to commit fraud
- 14 under IC 35-43-5.
- 15 (7) Recordings sold, rented, transported, or possessed by a person
- 16 in violation of IC 24-4-10.
- 17 (8) Property (as defined by IC 35-31.5-2-253) or an enterprise (as
- 18 defined by IC 35-45-6-1) that is the object of a corrupt business
- 19 influence violation (IC 35-45-6-2).
- 20 (9) Unlawful telecommunications devices (as defined in
- 21 IC 35-45-13-6) and plans, instructions, or publications used to
- 22 commit an offense under IC 35-45-13.
- 23 (10) Any equipment, including computer equipment and cellular
- 24 telephones, used for or intended for use in preparing,
- 25 photographing, recording, videotaping, digitizing, printing,
- 26 copying, or disseminating matter in violation of IC 35-42-4.
- 27 (11) Destructive devices used, possessed, transported, or sold in
- 28 violation of IC 35-47.5.
- 29 (12) Tobacco products that are sold in violation of IC 24-3-5,
- 30 tobacco products that a person attempts to sell in violation of
- 31 IC 24-3-5, and other personal property owned and used by a
- 32 person to facilitate a violation of IC 24-3-5.
- 33 (13) Property used by a person to commit counterfeiting or
- 34 forgery in violation of IC 35-43-5-2.
- 35 (14) After December 31, 2005, if a person is convicted of an
- 36 offense specified in IC 25-26-14-26(b) or IC 35-43-10, the
- 37 following real or personal property:
- 38 (A) Property used or intended to be used to commit, facilitate,
- 39 or promote the commission of the offense.
- 40 (B) Property constituting, derived from, or traceable to the
- 41 gross proceeds that the person obtained directly or indirectly
- 42 as a result of the offense.



(15) Except as provided in subsection (e), a vehicle used by a person who operates the vehicle:

(A) while intoxicated, in violation of IC 9-30-5-1 through IC 9-30-5-5, if in the previous five (5) years the person has two (2) or more prior unrelated convictions for operating a motor vehicle while intoxicated in violation of IC 9-30-5-1 through IC 9-30-5-5; or

(B) on a highway while the person's driving privileges are suspended in violation of IC 9-24-19-2 through IC 9-24-19-3, if in the previous five (5) years the person has two (2) or more prior unrelated convictions for operating a vehicle while intoxicated in violation of IC 9-30-5-1 through IC 9-30-5-5.

If a court orders the seizure of a vehicle under this subdivision, the court shall transmit an order to the bureau of motor vehicles recommending that the bureau not permit a vehicle to be registered in the name of the person whose vehicle was seized until the person possesses a current driving license (as defined in IC 9-13-2-41).

(16) The following real or personal property:

(A) Property used or intended to be used to commit, facilitate, or promote the commission of an offense specified in IC 23-14-48-9, IC 30-2-9-7(b), IC 30-2-10-9(b), or IC 30-2-13-38(f).

(B) Property constituting, derived from, or traceable to the gross proceeds that a person obtains directly or indirectly as a result of an offense specified in IC 23-14-48-9, IC 30-2-9-7(b), IC 30-2-10-9(b), or IC 30-2-13-38(f).

(17) Real or personal property, including a vehicle, that is used by a person to:

(A) commit, attempt to commit, or conspire to commit;

(B) facilitate the commission of; or

(C) escape from the commission of;

a violation of IC 35-42-3.5-1 through IC 35-42-3.5-1.4 (human trafficking) or IC 35-45-4-4 (promoting prostitution).

(18) A signal jammer (as defined in IC 35-31.5-2-305.5) that is used by a person to commit unlawful use of a signal jammer under IC 35-45-2-6.

(b) A vehicle used by any person as a common or contract carrier in the transaction of business as a common or contract carrier is not subject to seizure under this section, unless it can be proven by a preponderance of the evidence that the owner of the vehicle knowingly permitted the vehicle to be used to engage in conduct that subjects it to



seizure under subsection (a).

(c) Equipment under subsection (a)(10) may not be seized unless it can be proven by a preponderance of the evidence that the owner of the equipment knowingly permitted the equipment to be used to engage in conduct that subjects it to seizure under subsection (a)(10).

(d) Money, negotiable instruments, securities, weapons, communications devices, or any property commonly used as consideration for a violation of IC 35-48-4 found near or on a person who is committing, attempting to commit, or conspiring to commit any of the following offenses shall be admitted into evidence in an action under this chapter as prima facie evidence that the money, negotiable instrument, security, or other thing of value is property that has been used or was to have been used to facilitate the violation of a criminal statute or is the proceeds of the violation of a criminal statute:

(1) IC 35-42-1-1.5 (dealing in a controlled substance resulting in death).

(2) IC 35-48-4-1 (dealing in or manufacturing cocaine or a narcotic drug).

(3) IC 35-48-4-1.1 (dealing in methamphetamine).

(4) IC 35-48-4-1.2 (manufacturing methamphetamine).

(5) IC 35-48-4-2 (dealing in a schedule I, II, or III controlled substance).

(6) IC 35-48-4-3 (dealing in a schedule IV controlled substance).

(7) IC 35-48-4-4 (dealing in a schedule V controlled substance) as a Level 4 felony.

(8) IC 35-48-4-6 (possession of cocaine or a narcotic drug) as a Level 3, Level 4, or Level 5 felony.

(9) IC 35-48-4-6.1 (possession of methamphetamine) as a Level 3, Level 4, or Level 5 felony.

(10) IC 35-48-4-10 (dealing in marijuana, hash oil, hashish, or salvia) as a Level 5 felony.

(11) IC 35-48-4-10.5 (before its repeal on July 1, 2019) (dealing in a synthetic drug or synthetic drug lookalike substance) as a Level 5 felony or Level 6 felony (or as a Class C felony or Class D felony under IC 35-48-4-10 before its amendment in 2013).

(e) A vehicle operated by a person who is not:

(1) an owner of the vehicle; or

(2) the spouse of the person who owns the vehicle;

is not subject to seizure under subsection (a)(15) unless it can be proven by a preponderance of the evidence that the owner of the vehicle knowingly permitted the vehicle to be used to engage in conduct that subjects it to seizure under subsection (a)(15).



SECTION 5. IC 34-24-3-1, AS AMENDED BY P.L.276-2019, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. If a person has an unpaid claim on a liability that is covered by IC 24-4.6-5 or suffers a pecuniary loss as a result of a violation of **IC 25-37.5**, IC 35-43, IC 35-42-3-3, IC 35-42-3-4, IC 35-45-9, or IC 35-46-10, the person may bring a civil action against the person who caused the loss for the following:

- (1) An amount not to exceed three (3) times:
 - (A) the actual damages of the person suffering the loss, in the case of a liability that is not covered by IC 24-4.6-5; or
 - (B) the total pump price of the motor fuel received, in the case of a liability that is covered by IC 24-4.6-5.
- (2) The costs of the action.
- (3) A reasonable attorney's fee.
- (4) Actual travel expenses that are not otherwise reimbursed under subdivisions (1) through (3) and are incurred by the person suffering loss to:
 - (A) have the person suffering loss or an employee or agent of that person file papers and attend court proceedings related to the recovery of a judgment under this chapter; or
 - (B) provide witnesses to testify in court proceedings related to the recovery of a judgment under this chapter.
- (5) A reasonable amount to compensate the person suffering loss for time used to:
 - (A) file papers and attend court proceedings related to the recovery of a judgment under this chapter; or
 - (B) travel to and from activities described in clause (A).
- (6) Actual direct and indirect expenses incurred by the person suffering loss to compensate employees and agents for time used to:
 - (A) file papers and attend court proceedings related to the recovery of a judgment under this chapter; or
 - (B) travel to and from activities described in clause (A).
- (7) All other reasonable costs of collection.

